

DISTRICT- GAZIPUR

IN THE SUPREME COURT OF BANGLADESH

High Court Division
(Civil Appellate Jurisdiction)

Present:

Mr Justice Mamnoon Rahman
and
Mr Justice Md Atoar Rahman

First Miscellaneous Appeal No. 204 of 2010

IN THE MATTER OF:

Md. Rahisuddin alias Rashis Uddin and others
...defendant-appellants

= versus=

Mahmud Hossain Bachaue being dead his heirs 1(a)
Wasim Khalil and others
... plaintiff-respondents

Mr Md Shibbir Ahmed with
Mr Mahmedul Alam Bhuiyan, Advocates
....for the defendants-appellants
None appears for the plaintiff-respondents

Heard on: 24.11.2022 and 04.12.2022

Judgment on: 11.12.2022

Md Atoar Rahman, J:

This first miscellaneous appeal at the instance of the defendant Nos 7 to 11 is directed against the judgments and order dated 30.05.2004 under Order X rule 4(2) of the Code of Civil Procedure against them and by mediation under section 89A of the Code of Civil Procedure against the rest and decree dated 12.06.2004, passed by the learned Joint District Judge, First Court, Gazipur in Title Suit No. 82.

The respondent Nos. 1 to 9 as plaintiffs instituted the above mentioned title suit impleading the appellants as defendants No 7 to 11 and the respondents No 10 to 165 as defendants No 1 to 6 and 12 to 162 for partition in respect of 8.8025 acres of land described in the Kha

schedule along with a prayer for khas possession in respect of 1.6450 acres of land described in the Ga schedule to the plaint. Afterwards the plaintiff-appellants sought another relief against these defendant-appellants by way of amendment of the plaint in respect of three deeds of transfer to the effect that those are not effective and also not binding upon them.

The defendant-appellants and other defendant-respondents were contesting the suit by filing six separate written statements. On 30.05.2004 the date was fixed for examination of the parties under Order X of the Code of Civil Procedure. On the date fixed learned advocate on behalf of the defendant-appellants failed to appear. Learned judge of the trial court having found him absent pronounced judgment under rule 4(2) of Order X of the Code of Civil Procedure against the defendant-appellants and appointed himself as mediator in order to dispose of the suit against other defendant-respondents and fixed on 06.06.2004 for hearing alternative dispute resolution. On the date fixed ie on 06.06.2004 the learned joint district judge decreed the suit on mediation under section 89A of the Code of Civil Procedure.

Being aggrieved against the order dated 30.05.2004 the present defendant-appellants filed miscellaneous appeal No 77 of 2004 before the District Judge, Gazipur which was dismissed on maintainability ground. Thereafter against the judgments and order dated 30.05.2004 and decree dated 12.06.2004 passed by the learned joint district judge the defendant-appellants preferred an appeal being First Appeal No 397

of 2007 (First Appeal Tender No 220 of 2006) before this Division along with an application for condonation of delay under section 5 of the Limitation Act for a period of 600 days. A Division Bench of this Division issued Rule on condonation of delay being Civil Rule No 393(F) of 2006. After hearing another Division Bench was pleased to make the Rule absolute and at the same time allowed the appeal summarily and setting aside the above judgment and decree directed the joint district judge to hear the suit afresh by its judgment and order dated 15.01.2007. Being aggrieved by and dissatisfied with this judgment and order the plaintiff-respondents filed a Civil Petition for Leave to Appeal No 298 of 2007 before the Hon'ble Appellate Division. Their lordships were pleased to dispose of the same by their judgment and order dated 03.10.2007 in following manner:

“The order of the High Court dated January 15, 2007 passed in Civil Rule No 393(F) of 2006 arising out of F. A. T. No. 220 of 2006 is modified to the extent that the appeal shall be disposed of afresh on merit.”

On the basis of the above direction another Division Bench of this Division took up the First Appeal No 397 of 2007 for hearing on merit. During hearing the plaintiff-respondents raised a question that against the judgment passed under Order X, rule 4(2) of the Code of Civil Procedure, no first appeal under Order XLI, rule 1, but first miscellaneous appeal under Order XLIII, rule 1(e) of the Code of Civil Procedure is maintainable. Thereafter the defendant-appellants filed an

application for treating the first appeal filed under Order XLI, rule 1 of the Code as first miscellaneous appeal under Order XLIII, rule 1(e) of the Code that was allowed by the order dated 06.08.2010 and by dint of such order the first appeal was converted as First Miscellaneous Appeal being No 204 of 2010. Being aggrieved by this order of conversion the plaintiffs-respondents again filed Civil Petition for Leave to Appeal No 1942 of 2010 before the Hon'ble Appellate Division contending, *inter alia*, that the High Court Division erred in law in not considering the facts and circumstances that since the judgment dated 03.10.2007 in Civil Petition for Leave to Appeal No 298 of 2007 was passed by the Hon'ble Appellate Division to the effect that the appeal should be disposed of on merit and, as such, the High Court Division had no option in law but to hear the appeal on merit and cannot proceed to hear the application for treating the first appeal as first miscellaneous appeal. Upon hearing of both the parties their lordships were pleased to dismiss the Civil Petition for Leave to Appeal No 1942 of 2010 vide judgment and order dated 20.04.2014 with following conclusion:

“We do not find any illegality or infirmity in the decision given by the High Court Division. Whether or not a First Miscellaneous Appeal is maintainable in the facts of the case will be considered in due course by the Bench dealing with the First Miscellaneous Appeal. The impugned order does not call for any interference by this Division. Accordingly the civil petition for leave to appeal is dismissed, without, however, any order as costs.”

Eventually the first miscellaneous appeal is heard by us and during hearing Mr Md Shibbir Ahmed learned advocate along with Mr Mahmedul Alam Bhuiyan the learned advocate for the defendant-appellants submits that the learned joint district judge without following the specific provisions of sub-rules (1) & (2) of the rule 4 under Order X of the Code of Civil Procedure decreed the suit against the defendant-appellants under rule 4(2) of the Order X. In support of his contentions Mr Ahmed submits that the learned trial judge did not interrogate the learned advocate on behalf of the defendant-appellants in person and he did not refuse or was not unable to answer any material question. More so, learned trial judge on 30.05.2004 did not postponed the hearing of the suit to a further day and did not direct the defendant-appellants to appear in person on such day and, as such, the defendant-appellants did not fail to appear in person. He further submits that the learned trial judge having decreed the suit illegally against the defendant-appellants hurriedly disposed of the suit in the name of mediation under section 89A of the Code of Civil Procedure which is not sustainable in law and, as such, the impugned judgment and decree is liable to be set aside.

No one appears to oppose the appeal.

We have heard the learned advocate, perused the memorandum of appeal and the trial court's record along with impugned judgment and connected documents.

At the very outset we would like to determine whether a first miscellaneous appeal is maintainable in the facts of the case as observed by their lordships of the Hon'ble Appellate Division.

It has already been found that the learned judge of the trial court by the impugned order dated 30.05.2004 pronounced judgment against the defendants-appellants under sub-rule (2) of rule 4 of the Order X of the Code of Civil Procedure, against which First Appeal bearing No 397 of 2007 was filed. In course of hearing of such first appeal the plaintiff-respondents raised a question to the effect that against the judgment passed under Order X, rule 4(2) of the Code of Civil Procedure, no first appeal under Order XLI, rule 1 lies, rather, first miscellaneous appeal under Order XLIII, rule 1(e) of the Code of Civil Procedure is maintainable and ultimately the first appeal was converted into a first Miscellaneous Appeal bearing No 204 of 2010. Order XLIII deals with appeals from orders. As per the provisions of rule 1(e) of this Order XLIII an appeal shall lie against an order under rule 4 of Order X pronouncing judgment against a party. In view of this provision of law and facts and circumstances of the case we are of the clear opinion that the present first miscellaneous appeal is maintainable in law.

On perusal of the lower court's record we have already seen that on 30.05.2004 date was fixed for examination of the parties under Order X of the Code of Civil Procedure. On the date fixed learned advocate on behalf of the defendant-appellants failed to appear and the

learned joint district judge having found him absent passed an order pronouncing judgment under rule 4(2) of the Order X of the Code of Civil Procedure against the defendant-appellants only and appointed himself as mediator in order to dispose of the suit against the other defendant-respondents and fixed on 06.06.2004 for hearing on alternative dispute resolution. On the date fixed (on 06.06.2004) the learned trial judge decreed the suit (decree signed on 12.06.2004) on mediation under section 89A of the Code of Civil Procedure against the rest defendant-respondents.

For better appreciation of the matter rule 4 of the Order X of the Code of Civil Procedure is quoted bellow:

“Rule 4- Consequence of refusal or inability of pleader to answer. (1) Where the pleader of any party who appears by a pleader or any such person accompanying a pleader as is referred to in rule 2, refuses or is unable to answer any material question relating to the suit which the Court is of opinion that the party whom he represents ought to answer, and is likely to be able to answer if interrogated in person, the Court may postpone the hearing of the suit to a future day and direct that such party shall appear in person on such day.

(2) If such party fails without lawful excuse to appear in person on the day so appointed, the Court may pronounce judgment against him, or make such order in relation to the suit as it thinks fit.”

It appears that the learned trial judge clearly violating the above quoted mandatory provisions of sub-rules (1) & (2) of the rule 4

decreed the suit against the defendant-appellants under sub-rule (2) of rule 4 of the Order X of the Code of Civil Procedure. Because, firstly, since the learned advocate on behalf of the defendant-appellants was not interrogated in person by the learned trial judge, question of refusal or inability to answer any material question did not arise and, secondly and most importantly, since before passing the impugned order under sub-rule (2) the learned trial judge on 30.05.2004 did not postponed the hearing of the suit to a further day and did not direct the defendant-appellants to appear in person on such day, question of failure of the defendant-appellants to appear in person did not arise at all and, as such, on 30.05.2004 the learned trial judge in any manner was not empowered to pronounce judgment against the defendant-appellants.

Moreover, it appears that the plaintiff-respondents instituted the suit for partition, recovery of khas possession and declaration against three deeds of transfer, but the learned trial judge did not specify what relief was granted against the defendant-appellants. In the impugned order dated 30.05.2004 it was simply stated, “এমতাবস্থায় আরজি ও কাগজাত পর্যালোচনায় ৭-১১ বিবাদীর বিরুদ্ধে ১০ আদেশের ৪(২) বিধি মোতাবেক মামলার ডিক্রি প্রদান করা হইল” On the other hand, it transpires that in the judgment dated 06.06.2004 the learned trial judge while decreed the suit on mediation under section 89A of the Code of Civil Procedure did not give any relief against this defendant-appellants. It also appears that in the impugned decree drawn up under Order XX, rule 6 & 7 of the Code of Civil Procedure the impugned judgment dated 30.05.2004 has not been

reflected and the same has been prepared only on the basis of the judgment on compromise dated 06.06.2004.

In view of the forgoing discussions we are of the opinion that the impugned judgments and decree is not maintainable in law and, as such, the first miscellaneous appeal succeeds.

In the result, the first miscellaneous appeal is allowed without any order as to cost. Setting aside the impugned judgments and decree, so far as it relates to the defendants-appellants, passed by the learned Joint District Judge, First Court, Gazipur in Title Suit No 82 of 2001 the same is sent back to the trial court on remand for hearing the same afresh. On receipt of the lower court's record learned joint district judge shall hear the suit afresh and dispose of the same in accordance with the law and procedures within 6(six) months from date of receipt of the record.

Let the lower court's record along with a copy of this judgment be sent to the concerned court below at once.

Mamnoon Rahman, J:

I agree